Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Monday, October 23, 2023

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

Mayor Collier called the closed session meeting to order at 6:05 p.m.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

Closed Session (6:06 p.m.)

3. Authority to Hold a Closed Meeting and Related In-Camera Session

Moved by: S. Lee
Seconded by: N. Henry

That Council convene to a Closed Session pursuant to Section 239 (2) (f) of the *Municipal Act, 2001,* as amended, to discuss advice that is subject to solicitor-client privilege, including communications necessary for that purpose.

CARRIED

3.1 **Legal Matter – 599 Kingston Road West**

Open Meeting (6:23 p.m.)

Ratify Actions Taken in Closed Session

Moved by: R. Tyler Morin
Seconded by: N. Henry

That all directions approved during the Closed Session be ratified.

CARRIED

Council recessed at 6:24 p.m.

Council resumed at 7:00 p.m.

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 7:00 p.m. and acknowledged traditional treaty lands.

4. Adoption of the Minutes

Moved by: S. Lee
Seconded by: L. Bower

That the minutes of the Regular Meeting of Council held on September 18, 2023 be adopted.

CARRIED

Moved by: S. Lee
Seconded by: L. Bower

That the minutes of the Closed Meeting of Council held on September 18, 2023 be adopted.
CARRIED

5. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Jason McWilliam, Manager of Legislative Services/Deputy Clerk, noted that no questions had been received regarding the contents of the meeting agenda.

6. Delegations, Presentations, and Public Meetings

6.1 Delegation: Autism After 18 – Supports for Those 'Aging in Place' at Home with Family

Judy Hanson, CEO, Autism Home Base Durham Inc., provided an overview of the Autism Home Base Durham Inc. organization. J. Handson discussed the mission and vision of Autism Home Base Durham Inc., barriers, success factors, programming, strategic priorities, learnings, and Lived-Experience Autism Perspective (LEAF) training.

Council Members asked questions regarding member capacity, programming opportunities at the Abilities Centre, contact details, survey metrics and results, Autism rates, and provincial funding opportunities. J. Hanson responded to questions from Council Members.

On behalf of Council, Mayor Colier thanked J. Hanson for her delegation.

On behalf of Council, Mayor Collier acknowledged the Israeli–Palestinian conflict, noting that he is deeply concerned by the recent loss of lives and suffering of all civilians. Mayor Collier encouraged all parties to engage in dialogue, respect all humanitarian rights and come to a peaceful resolution. Mayor Collier recognized the impacts on the peace and stability of the Israeli, Palestinian and other Middle Eastern communities in the Town of Ajax. Mayor Collier noted that antisemitism, islamophobia and hate of any kind will not be tolerated in the Town of Ajax.

6.2 Presentation: Respite Centre – Christian Faith Outreach Centre (CFOC)

Mikaela Malcolm, Strategic Initiatives Coordinator (Community Support Programs), noted that the purpose of the presentation is to provide an update regarding the Temporary Emergency Shelter (27 Station Street). M. Malcolm introduced Sahar Foroutani, Manager of Income, Employment and Homelessness Supports Division, Durham Region Social Services.

S. Foroutani delivered a presentation regarding the Christian Faith Outreach Centre (COFC) – Doors of Compassion Shelter (27 Station Street). S. Foroutani recognized COFC for their community work with the homelessness population in Ajax and discussed Doors of Compassion Shelter statistics, rationale for the use of 27 Station Street, the need to continue, and system enhancements.

Council Members asked questions regarding low-barrier shelter restrictions, by-name lists, policing substance users, support services and harm reduction services, success rate of housing the homeless, system enhancements, shelter system pressures resulting from an influx of asylum seekers/refugees, harm reduction materials and drug use, asylum seeker/refugee statistics, funding, shelter modifications, potential permanent shelter sites, and Regional funding. Marla Walters, Shelter and Community Programs Director, Christian Faith Outreach Centre, Lisa McIntosh, Director of Income, Employment and Homelessness Supports Division, Durham Region Social Services, and Stella Danos-Papacontantinou, Commissioner of Social Services, Durham Region, responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked Durham Region Social Services for their presentation.

6.3 Public Meeting: PDS-2023-36: Zoning By-law Amendment Z2/22

2792265 Ontario Inc.
479 Kingston Road West

Bruno Scopacasa, Supervisor of Development Approvals, reviewed the contents of the written report and recommendations contained therein. B. Scopacasa discussed the subject lands, official plan designations, current zoning of the subject lands, submitted planning applications, reports and studies, planning framework and analysis, and staff recommendations.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

There being no questions or comments from the public, Mayor Collier closed the public meeting and invited comments from the applicant.

Sanjay Mehta, 2792265 Ontario Inc., Applicant, expressed support for the staff report and recommendations contained therein.

Moved by: L. Bower
Seconded by: N. Henry

1. That Zoning By-law Amendment Application Z2/22 be approved and that the implementing Zoning By-law, as provided in Attachment 1 to this report, be considered for approval by Council at its meeting of October 23, 2023.

CARRIED

6.4 **Public Meeting: PDS-2023-37: Zoning By-law Amendment Application Z3/21**
Draft Plan of Subdivision Application S-A-2021-01
Estates of Northgate Inc.
1641 Church Street North

Eric Simpson, Senior Planner, reviewed the contents of the written report and recommendations contained therein. E. Simpson discussed the subject lands, Master Environmental Servicing Plan (MESP) and MESP area, surrounding development applications/proposals, submitted planning applications, proposed development, potential designs, official plan conformity, current zoning of the subject lands, planning framework and analysis, and staff recommendations.

Council Members asked questions regarding comments submitted by Arbor Memorial Inc. (owners of Pine Ridge Memorial Gardens, located at 541 Taunton Road West) and parking supply. E. Simpson responded to questions from Council Members.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

There being no questions or comments from the public, Mayor Collier closed the public meeting and invited comments from the applicant.

Frank Marchio, Estates of Northgate Inc. (Lakeview Homes), Applicant and Jack Wong, Malone Given Parsons Ltd., Planning Consultant, commended the efforts of staff and expressed support for the staff report and recommendations contained therein.

Moved by: M. Crawford
Seconded by: R. Tyler Morin

1. That Zoning By-law Amendment Application Z3/21 be approved and that the implementing Zoning By-law, as provided in Attachment 1 to this report, be considered for approval by Council at its meeting of October 23, 2023;

2. That Draft Plan of Subdivision Application S-A-2021-01 be approved subject to the conditions of draft approval, substantially provided in Attachment 2 to this report, and that staff be authorized to grant draft approval of the proposed draft plan of subdivision.

CARRIED

7. Correspondence

Moved by: M. Crawford
Seconded by: J. Dies

That the report dated October 23, 2023 containing Items of Correspondence be received for information.

CARRIED

8. Reports

8.1. Community Affairs & Planning Committee Report

8.1.1 Community Affairs & Planning Committee, October 2, 2023

Members separated Item 4.2 of Item 8.1.1 for amendment.

Council Members sought clarification regarding the amendment. Mayor Collier provided clarification.

Main Motion

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the Community Affairs & Planning Committee Report dated October 2, 2023, be adopted, save and except Item 4.2.

CARRIED

Amendment

Moved by: S. Lee
Seconded by: J. Dies

That the recommendation associated with Item 4.2 of the October 2nd CAP Report be amended by:

1. Replacing October 23, 2023 with November 27, 2023 and;

2. That a new be clause be added which reads “That Council approve the proposed amendments to the Pickering Village Community Improvement Plan and staff be authorized to forward the implementing by-law to the November 27, 2023 Council meeting.

CARRIED

Main Motion as Amended

Moved by: S. Lee
Seconded by: L. Bower

That the Community Affairs & Planning Committee Report dated October 2, 2023, be adopted, as amended.

CARRIED

8.2. General Government Committee Report

8.2.1 General Government Committee, October 10, 2023

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the General Government Committee Report dated October 10, 2023 be adopted.

CARRIED

8.3 Summary of Advisory Committee Activities

Moved by: M. Crawford
Seconded by: S. Lee

That the Summary of Advisory Committee Activities Report dated October 23, 2023, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

8.4 Departmental Reports

8.4.1. CAO-2023-16: Quality Management Program Update

Council Members asked questions regarding transition phases and next steps, external audit costs, training and education, rationale for discontinuing ISO 9001 certification, accountability, and reporting requirements. Darren Gopie, Quality & Continuous Improvement Lead and Shane Baker, Chief Administrative Officer, responded to questions from Council Members.

Moved by: R. Tyler Morin
Seconded by: N. Henry

1. That the Town formally discontinue its pursuit of ISO 9001 recertification as a quality management approach.

2. That the Town transition to a quality management philosophy of continuous improvement with an emphasis on improving processes, documentation and compliance.

CARRIED

8.4.2. PDS-2023-35: Automated Speed Enforcement (ASE) Program Update

Council Members asked questions regarding charges collected, charges laid, average ticket value, program costs, ticket processing capacity, opportunities to increase camera operating hours, timelines associated with the implementation of the Administrative Money Penalty System (AMPS), rationale for increased speeds on Turnerbury Avenue, traffic calming strategies, demerit points and insurance impacts, rationale for the difference between photos taken vs charges laid, ASE camera locations, additional designated community safety zones, opportunities to deploy a camera on Harwood Avenue, and speed limit reductions on Harwood Avenue. Dhaval Pandya, Manager of Transportation Planning, Geoff Romanowski, Director of Planning & Development Services, and Nicole Cooper, Director of Legislative & Information Services/Clerk, responded to questions from Council Members.

Moved by: N. Henry
Seconded by: R. Tyler Morin

1. That the report titled “Automated Speed Enforcement Program Update” be received for information.

CARRIED

8.4.3. LIS-2023-15: Shortening of 2024 Budget Timelines Under Part VI.1 of the Municipal Act

Council Members asked if shortened budget timelines apply to future budgets and questions regarding public consultation and days defined. Mayor Collier and Dianne Valentim, Director of Finance/Treasurer, responded to questions from Council Members.

Moved by: J. Dies
Seconded by: M. Crawford

1. That Council reduce the time period as set out in subsection 7(3) of O. Reg. 530/22 to pass a resolution making an amendment to the proposed budget from 30 days to 28 days; and,

2. That Council reduce the time period as set out in subsection 7(10) of O. Reg. 530/22 to override the head of council’s veto of an amendment to the proposed budget from 15 days to 5 days.

CARRIED

9. Regional Councillors’ Report

Regional Councillor Lee noted that a Special Council meeting is scheduled for November 9, 2023 with respect to the Regional tax increase.

Moved by: S. Lee
Seconded by: M. Crawford

That the Regional Councillors' Reports of October 23, 2023 be received for information.

CARRIED

10. Business Arising from Notice of Motion

10.1 Property Tax Relief Program for Seniors and Persons with a Disability

Regional Councillor Crawford and Councillor Tyler Morin introduced the motion and reviewed its contents.

Moved by: M. Crawford
Seconded by: R. Tyler Morin

WHEREAS all property taxes in Ontario are calculated by multiplying the assessed value of the property by the property tax rate established by the municipality;

AND WHEREAS low-income seniors and persons with disabilities who are trying to age in place are facing undue pressure to meet their annual property tax payments, due to the higher cost of living resulting from increasing interest rates and higher inflation;

AND WHEREAS Section 365 of the Municipal Act permits a local council to pass a by-law "to provide for the cancellation, reduction or refund of taxes levied for municipal and school purposes";

AND WHEREAS subsections (3) and (4) of Section 365 of the Municipal Act allow the cost of the amount of the taxes cancelled, reduced or refunded to be shared with the school boards in the same proportion that the municipalities and school boards share in those revenues, with the amount of the upper-tier municipality's share to be the responsibility of the lower-tier if the upper-tier has not passed a similar by-law;

AND WHEREAS several Durham Region municipalities, including Brock, Scugog, Whitby, Oshawa, and Pickering offer eligible low-income senior and disabled taxpayers an annual property tax grant, ranging from $350 (Brock) to $535 (Pickering), with eligibility requirements generally as follows:

1. Applicant and/or spouse are at least 65 years of age and receive the Guaranteed Income Supplement (GIS); or
2. Applicant and/or spouse are a person with a disability and receive support under the Ontario Disability Support Program (ODSP); and,
3. Applicant and/or spouse are the registered homeowner on title and occupy the property as a principal residence; and,
4. Applicant and/or spouse have been continually assessed as the owner and resident of the residential property for a period of not less than one year immediately preceding the date of the application.

AND WHEREAS in 2022, Pickering reported 254 applications, Oshawa reported 330 applications, and Whitby reported 225 applications;

AND WHEREAS all municipalities within Durham Region offer low-income seniors tax deferral, through a Regional by-law, which is limited to an assessment related tax increase;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council directs Finance Department staff to report back to Council or the appropriate standing committee by Spring 2024, with information regarding the implementation of an application-based tax grant for low-income seniors and low-income persons with disabilities in the amount of $535, including eligibility criteria, associated cost projections and resource implications.

CARRIED

10.2 Taking Action on Housing Supply and Affordability through Policy Changes

Mayor Collier and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members asked questions regarding expanded as-of-right zoning

permissions, infrastructure project scope, Housing Accelerator Fund (HAF) initiatives, funding restrictions, and application requirements. Mayor Collier, Stev Andis, Manager of Planning, G. Romanowski, and Kassandra Cruciano, Senior Advisor, Grants & Partnerships, responded to questions from Council Members.

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS between 2011 and 2021, Ajax experienced a population increase of 15.6% per cent to 126,666;

AND WHEREAS in February 2023, Ajax Council endorsed the Ontario government's Municipal Housing Pledge targeting 17,000 new housing units in Ajax by 2031;

AND WHEREAS the Town of Ajax has a fixed urban boundary and higher density housing is necessary to create new and affordable housing units and to diversify the housing stock in Ajax;

AND WHEREAS the Town of Ajax has applied for $43.5 million from the Housing Accelerator Fund (HAF) to invest in community-related infrastructure, programs, and studies that support housing;

AND WHEREAS the HAF grant program represents an opportunity for the Town to refine the policies, procedures and processes to encourage development in an effort to increase the supply of housing consistent with the Housing Pledge;

AND WHEREAS the Town of Ajax now currently permits "as-of-right" zoning permissions for up to 3 residential units in accordance with Bill 23;

AND WHEREAS the Town of Ajax would like to further promote environmental sustainability with more efficient land use and provide more affordable housing options for families by reducing barriers.

NOW THEREFORE BE IT RESOLVED THAT:

1. Planning and Development staff be directed to carry out the necessary work to implement "as-of-right" zoning permissions for up to four (4) residential units on a property wherever zoning permits detached, semi-detached or street townhouse dwellings.

2. A copy of this motion be circulated to the Right Honourable Justin Trudeau, Prime Minister of Canada, the Honourable Sean Fraser, Federal Minister of Housing, Infrastructure and Communities, the Honourable Mark Holland, MP for Ajax, the Honourable Paul Calandra, Ontario Minister of Municipal Affairs and Housing, Patrice Barnes, MPP for Ajax, John Henry, Durham Regional Chair, and Durham Regional Council.

CARRIED

10.3 **Solar Lighting on Town Pathways**

Councillor Bower and Regional Councillor Lee introduced the motion and reviewed its contents. Council Henry requested that staff engage the Ajax Accessibility Advisory Committee and CNIB link, Clearing Our Path-Lighting during the consultation process.

Moved by: L. Bower
Seconded by: S. Lee

WHEREAS Ajax Council has prioritized fostering a safe and welcoming community as part of the 2022-2026 Strategic Plan;

AND WHEREAS better lighting can boost pedestrian comfort and feelings of safety when moving around at night;

AND WHEREAS solar lights are positioned as cost-effective and environmentally sustainable alternatives to traditional streetlights powered by hydro because, while installation and maintenance costs are similar, there are no associated energy costs;

AND WHEREAS the Town has implemented solar lighting in Paradise Park, Hermitage leash free dog park, and the Greenwood Conservation Area parking lot;

AND WHEREAS solar lighting systems are also being utilized by some municipalities, including Windsor, Hamilton, and Vancouver to improve visibility on pathways and in parks;

NOW THEREFORE BE IT RESOLVED THAT:

Operations and Environmental Service staff be directed to bring a report to Council or the appropriate standing committee by June 2024, reporting on the success of existing Town solar projects, and the cost and feasibility of implementing additional solar lighting infrastructure, including recommendations for lighting along one neighbourhood linking pathway per ward.

CARRIED

11. By-laws

Moved by: L. Bower
Seconded by: J. Dies

That By-law numbers 55-2023 to 60-2023 be read a first, second and third time and passed.

CARRIED

12. Notice of Motion

Regional Councillor Lee noted he will bring forward a motion to the November meeting of Council related to provincial funding for individuals with Autism.

Councillor Henry noted that herself and Regional Councillor Dies will bring forward a motion to the November meeting of Council related to the establishment of a lobbyist registry.

13. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities including a 'Coffee with Councillors' meet and greet with Councillor Bower and Regional Councillor Dies on October 24th, a community Ward 2 meeting on November 8th, 'Power of the Purse' hosted by Girls Inc. on November 3rd, BACD Durham Entrepreneurial Week on November 13th, a celebration of Diwali & Hindu Heritage Month hosted by Sankat Mochan Hanuman Mandir on November 18th, the Santa Clause Parade on November 25th, and Live with Mayor Collier on October 25th.

14. Confirming By-Law

Moved by: J. Dies
Seconded by: S. Lee

That By-law number 61-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on October 23, 2023, be read a first, second and third time and passed.

CARRIED

15. Adjournment

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the October 23, 2023 meeting of the Council of the Town of Ajax be adjourned (9:34 p.m.)

CARRIED

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Mayor

_____
D-Clerk